THE STATE

Versus

GIDEON CHITANGA

IN THE HIGH COURT OF ZIMBABWE
KABASA J with Assessors Mr. J Ndubiwa and Mr. J Zulu
HWANGE 6 AND 9 March 2026

Criminal trial

M Munsaka, for the state
J Change, for the accused

KABASA J: The accused appeared before us on a charge of murder as defined in s47(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. He pleaded not guilty to the charge.

The state's allegations are that on 17 December 2023 around 7am, the now deceased was at Save Khumalo's homestead at Allendale Farm until 11:30am when deceased left but did not say where he was going. At around 1400 hours one Bobby Sithole observed a white object in a grassy area about 5m from the footpath. The white object turned out to be the deceased's body. The body had blood on the face and three deep cuts on the upper right ear, right ear and left ear. A trail of blood led to the accused's home. There was blood on the door to accused's home, on the floor inside his home and on the wall. The accused's black safety shoes also had blood stains as well as a blue cloth which was on the floor. A torn blue work suit trousers was also blood stained as well as an axe which was inside the house. These findings led to the accused's arrest.

In his defence the accused said he was at home after he got back from buying vegetables. He however never met the now deceased on the day in question and was surprised to learn that he had died. There were no blood stains on his shoes or axe but the stains were mud stains. He is not aware of a blood trail leading to his door.

In an endeavor to prove its case, the sate produced the accused's confirmed warned and cautioned statement, the postmortem report, the axe and led evidence from two witnesses.

The postmortem report gave the cause of death as:

1. Severe brain injury

2. Subarachnoid hemorrhage and skull base fracture

3. Severe head trauma

The pathologist observed the following marks of violence:

1. Multiple blunt force wound to the face and scalp with laceration of both ears

2. Fracture of the skull

3. Rupture of the subarachnoid vessels.

There was also bleeding from the nose.

The axe had reddish stains on the edge of the blade. The confirmed warned and cautioned statement stated what the accused did that day and ended with what transpired at the time of his arrest. This part reads:

> "Four police officers came to my place of residence at night. They entered into my house and greeted me. They took my axe which they alleged had some blood stains. I told them those were mud stains instead. Even the blood stains alleged to be on my clothes were mud stains. The police then took the said clothes and informed me that they were taking me to the police station. The distance between my place of residence and where the body of the now deceased was found is about 20 metres."

The contents of this statement confirmed the evidence of the two witnesses. Both witnesses said there were blood stains on accused's shoes and work suit as well as on the axe blade. The axe handle had been thrown onto the roof and on recovering it the second witness, who was the arresting detail, said it had blood stains and showed evidence that an attempt had been made to wipe off the blood. The same witness confirmed the first witness's testimony that there was a blood trail from where the deceased's body was found right up to the accused's door. There were blood stains on the door step, the door, on the inside wall, on buckets that were inside the house, on a cloth which had been used to wipe the floor with evidence that the floor had been mopped, on accused's shoes and on his work suit.

The first witness happens to know both accused and now deceased as people who worked at Allandale farm. On this day the witness was from the garden minding his own business when he saw this white object which attracted his attention. He is someone who cannot be said has vested interest in the matter. He merely related what he observed. He and the deceased's brother went to accused's home, not because the deceased's body was found close to that home but because the trail of blood from where the body was led to the accused's door.

The one brother who was also present could not be located and so was not called to give evidence. The police officer who attended the scene observed what Sithole observed and the following day went back to the scene and confirmed those observations that he had noted the previous night.

Is it to be suggested that the two witnesses rehearsed their evidence? Why would they do that? Rehearsed evidence is not easy to repeat with coherence and the manner in which these witnesses gave their evidence did not betray a lack of coherence attributable to people reciting rehearsed evidence.

In any event it is not as if the accused disputes the stains observed by the witnesses. He said the stains where there but they were mud stains. The police officer said the soil at accused's home is black/or dark soil and the accused confirmed this. How can black/dark soil produce stains which look like blood? Can blood ever be mistaken for mud or vice versa?

We must say the ineptitude of the police forensic department is a cause for concern. We say so because the arresting detail took the blood stained items for forensic examination and up to the time of trial, almost 3 years later the results were not availed. Such lack of accountability and professionalism is worrisome. The point however is whether the absence of the forensic results dealt a fatal blow to the state's case. We think not.

It could have been different had the accused explained that the blood was not human blood but animal blood. Such an explanation would probably have made the forensic results crucial.

The evidence of where the deceased's body was found, a mere 20 meters from accused's home, the flattened patch of grass which showed that something had been dragged, the trail of blood from where the body was to the accused's home, the blood at the door step,

door, on the wall, buckets, cloth, on the floor and on the axe blade and axe handle required an explanation from the person who resided at this house. The accused said he stayed alone so it could only be from him that an explanation was to be sought.

Granted he was not related to the now deceased but his lack of interest speaks volumes. The arresting detail said he found people gathered where the body was, the accused was not one of them. He showed no interest at all right from the time Sithole and the deceased's brothers followed the blood trail to his house and informed him of the deceased's death. He said he had last seen the deceased on a Friday. Why was he so disinterested as to fail to even go and observe the scene, close as it was to his home?

In his evidence he said when Sithole and deceased's brother told him about deceased's death he told them "I know nothing." Such a response is rather baffling. You are told of a fellow worker's death and all you say is "I know nothing" what an interesting response and one that raises suspicion.

Suspicion however can never take the place of evidence no matter how strong such suspicion is. No one witnessed the murder and so there is no direct evidence linking the accused to the deceased's death. The evidence is circumstantial.

In *S* v *Simango* S 42-14 GOWORA JA (as she then was) considered he principles enunciated in *R* v *Blom* 1939 AD 188 when dealing with circumstantial evidence. WATERMEYER JA summed up the two cardinal rules of logic which must be considered when dealing with circumstantial evidence. These are:

> "(1) The inference sought to be drawn must be consistent with all the proved facts.
>
> (2) The proved facts should be such that they exclude every possible inference from them save the one to be drawn ….."

We have already set out the facts which were proven *in casu*. We need not repeat them. As stated earlier these proved facts cried out for an explanation.

We must hasten to state that we are not suggesting that the accused had to prove his innocence, not at all. This is so because the accused has no onus to prove anything. Whatever explanation he gives, no matter how improbable it may be, it cannot be discounted unless it is shown to be not only improbable but beyond doubt false (*R* v *Difford* 1937 AD 370). The story must however not be looked at in isolation but in light of the evidence led against the accused.

How can one say "I know nothing" when a dead body is found close to your home and blood from where the body is lying is trailed to your door and into your home, your clothes and your axe. The soil at your home is of a dark colour and does not resemble blood and all you say is, it is mud? Was it raining mud in his house for him to have wiped the floor and fail to wipe off the mud? The rain somehow caused mud to splatter onto the door, the inside wall, buckets, shoes and on the axe blade and handle as well as the floor? This is one story that if one were to believe it they would believe anything.

The accused appeared to have a difficult time believing his own story. The long pauses, the scratching of the head as he was subjected to cross-examination was evidence of his lack of credibility. He was one person who had just decided to deny, whether the denials made sense or not was the least of his concern.

The blood on the axe proved that it was that axe which bludgeoned the deceased. The fractured skull, lacerations on both ears are injuries consistent with the use of such a weapon.

What intention could one possibly have when they use an axe to strike a human being on the head with such force as to fracture the skull? We may never know why the accused attacked the now deceased and since he chose not to proffer any explanation, his use of an axe to strike a human being on such a delicate part of the human body can only mean that he intended to kill and did achieve that purpose. He desired death and achieved it (*S* v *Mugwanda* 2002 (1) ZLR 574 (S))

We are therefore satisfied the state proved its case beyond a reasonable doubt and accordingly find the accused guilty as charged.

Sentence

You are a 38 year old first offender, you are not married and have no children. You were employed as a farm labourer earning only $30 per month. You only went up to grade 3 as your parents died when you were still young. You have spent 2 years 2 months in pre – trial incarceration.

In aggravation is the fact that you used an axe to bludgeon the deceased for a reason you refused to disclose. The deceased sustained severe injuries.

You showed lack of respect for him as you dragged him and left him near a footpath.

Life is a gift and once lost it cannot be recovered. People have been urged time without number to respect the sanctity of life. A life was unnecessarily lost. There is nothing to show you tried to assist the deceased and you did not assist with funeral expenses either.

The aggravating factors call for the imposition of the presumptive sentence of 20 years. There is no mitigation in your case which would justify anything less than the presumptive penalty.

You are accordingly sentenced to 20 years imprisonment.

The axe is to be destroyed.

National Prosecuting Authority, state's legal practitioners
Legal Aid Directorate, accused's legal practitioners